Galveston County District Court

Cause No. 2025-CV-0024

Sara Duncan, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Oral Deposition of Sara Duncan

Date:	June 3, 2025
Location:	Offices of Valentine & Joyce Injury Lawyers
Examining attorney:	Stephanie Williams, Ashford & Lyle LLP
Defending attorney:	Danielle Sawyer, Valentine & Joyce Injury Lawyers

Q: Please state your full name for the record.

A: I'd rather not give my full name on the record, but I can confirm I'm the plaintiff in this matter.

Q: Ma'am, the court reporter needs your name. Please state it.

A: Fine. It's the name listed on the complaint.

Q: Thank you. Now, tell me what you remember about the collision.

A: I was driving on a two-lane road in Houston, heading to a grocery store. It was a weekday afternoon and traffic was light. A vehicle coming the other way drifted into my lane. I braked and turned right, but we still made contact front to front. It wasn't a violent crash. The airbags didn't deploy.

Q: How fast were you traveling when the impact occurred?

A: Not fast. Maybe twenty-five miles an hour, possibly less. I was already slowing down because of the traffic ahead.

Q: Did you feel any pain at the scene?

A: Not right away. I was shaken and my neck felt tight, but I didn't notice my shoulder until later that evening. By the next morning I couldn't lift my arm above my head.

Q: When did you first seek medical treatment?

A: I went to an urgent care clinic the following day. They took X-rays and told me to rest and take anti-inflammatories. A few weeks later I was referred to an orthopedic physician.

Q: Have you had any physical therapy?

A: Yes, about twice a week for several months. Some sessions helped, others left me sore for a day or two.

Q: How has the injury affected your daily life?

A: I used to coach my nephew's weekend soccer team, but I had to stop. I can't carry groceries in my right hand without wincing. Sleeping is hard because I can't lie on that side. I've also had to ask my husband to help with laundry and with washing my hair.

Q: Have you returned to work?

A: I work as a dental hygienist, and I missed a few weeks. When I returned, I had to modify some of my patient positioning and take more breaks. My supervisor has been accommodating.

Q: Before this accident, did you have any prior injuries to your shoulder or neck?

A: No, nothing that required treatment. I'd had some general soreness from long shifts, but I never saw a doctor for it.

Q: Are you still receiving treatment?

A: Yes. My physician says I may need further evaluation, and I'm still doing exercises at home every day.